



**Australian Venue Co – assets of Black Nugget Hotel
Motel, Bartletts Tavern and all associated detached
bottle shops**

MN-15034

Phase 1 Determination

Acquisition may be put into effect

31 August 2026

1. Determination and statement of reasons

Notified acquisition	AVC Operations Pty Limited (AVC), a subsidiary of Australian Venue Co. Holdings Ltd (AVC Holdings), proposes to acquire substantially all of the assets of two licensed venues, Bartlett's Tavern, Rockhampton and Black Nugget Hotel Motel Moranbah, and all associated detached bottle shops from Central Hospitality Services Pty Ltd (CHS) and Athena Hospitality Group Pty Ltd (Athena) respectively (together, the Vendors) (the Acquisition). The Acquisition also includes the assignment of the lease for each premises being acquired by AVC.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, AVC, operates over 200 licensed venues throughout Australia and New Zealand, primarily pubs, as well as some bars, clubs and licensed restaurants. In the Rockhampton region, AVC operates the Leichhardt Hotel and Berserker Tavern. One of the targets, Black Nugget Hotel Motel, is a licensed motel and hotel located in Moranbah Queensland. The licence also covers, the Moranbah detached bottle shop premises, Shop 6, Moranbah Fair, St Francis Drive, Moranbah (together, the Black Nugget Hotel Motel Business). The other target, Bartlett's Tavern, is a pub and grill in Rockhampton Queensland. The licence also covers two detached bottle shops (1) Berserker detached bottle shop premises, 169 High Street, Berserker; and (2) Highway A1 detached bottle shop premises, 86 Derby Street, Rockhampton (together, the Bartlett's Tavern Business). Both venues are typical Australian pubs with facilities including a bistro, sports bar, gaming room, function room, beer garden and detached bottle shop. Black Nugget Hotel Motel also includes a motel accommodation premises.
Overlap between the Parties	The parties overlap in the retail supply of on-premises hospitality services (including bar service, casual dining, gaming facilities and entertainment) in the Rockhampton region of Queensland.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and publicly available information.

	The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings: • The market share aggregation arising from the Acquisition is minimal in the local area surrounding the Bartlett's Tavern Business. • Post-acquisition, AVC will likely continue to face competition from alternative hospitality venues in the Rockhampton region. • AVC does not currently overlap with the Black Nugget Hotel Motel Business in Moranbah.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act